

Court No. - 9

Case :- WRIT - C No. - 59178 of 2009

Petitioner :- Shiv Ram

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Vijay Bahadur Shivhare, Sandeep Kumar Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Yogesh Chandra Gupta, J.

We have heard learned counsel for the petitioner, learned standing counsel appearing for the respondents no. 1 and 5 and Sri Rajesh Tripathi learned counsel appearing for respondents no.2, 3 and 4. The respondents pray for and are allowed one month's time to file counter affidavit. Learned counsel for the petitioner may file rejoinder affidavit within next three weeks.

List thereafter.

In case the petitioner deposits a sum of Rs.10,000/- within a period of one month from today, the recovery proceedings initiated by the respondents in pursuance of citation dated 16.9.2009 issued by the respondent no.5 shall remain stayed.

Order Date :- 7.11.2009

SC

Court No. - 1

Case :- WRIT - C No. - 59178 of 2009

Petitioner :- Shiv Ram

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Vijay Bahadur Shivhare, Sandeep Kumar Srivastava

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Sri Sandeep Kumar Srivastava, learned counsel for the petitioner prays for adjournment of the case as today his file is not with him.

List this matter in the next cause list peremptorily.

Order Date :- 13.9.2019

Atmesh

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 59178 of 2009

Petitioner :- Shiv Ram

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Vijay Bahadur Shivhare, Sandeep Kumar
Srivastava

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Sri Sandeep Kumar Srivastava, learned counsel for the petitioner has sent illness slip today.

A perusal of the order sheet shows that on 13.09.2019 this Court was adjourned the matter on the request of counsel for the petitioner and the matter was listed peremptorily in the next cause list, hence, the same is listed today peremptorily.

A last opportunity is given to Sri Sandeep Kumar Srivastava, learned counsel for the petitioner to adjourn the matter as he has sent illness slip today.

List the matter again peremptorily in the next cause list.

Order Date :- 23.9.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 59178 of 2009

Petitioner :- Shiv Ram

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Vijay Bahadur Shivhare, Sandeep Kumar
Srivastava

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Sandeep Kumar Srivastava, learned counsel for the petitioner, Sri Ashutosh Dwivedi, learned Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondent nos. 2, 3 & 4, learned Standing Counsel for respondent no. 1 and perused the record.

By means of this petition under Article 226 of the Constitution, the petitioner has challenged the recovery initiated by the respondents for realization of outstanding electricity dues to the tune of Rs. 35,657/-. It appears from the record that have been brought along with the writ petition that some checking report was submitted as the petitioner was found to be using electricity unauthorizedly. However, it is nowhere reflected that at any point of time any provisional assessment order was passed. From the document that has been brought on record along with the counter affidavit, it transpires that some order was passed on 06.07.2008 making assessment of dues to the tune of Rs. 35,596.80 paise, which was directed to be treated by the Executive Officer as final assessment order.

In our considered opinion, whenever there is any issue of theft and disconnection of electricity supply takes place as a consequence to that, it is bounden duty under the U.P. Electricity Supply Code, 2005 and the provisions under the relevant Electricity Act, 2003 to issue, along with the checking report, a provisional assessment order.

In such view of the matter and the fact that the petitioner has already deposited Rs. 10,000/- towards outstanding dues pursuant to the interim order passed by this Court while entertaining the writ petition, hence, this writ petition is **disposed of** with a direction that the respondent no. 4 shall provide a copy of provisional assessment order within a period of five weeks from today and the petitioner shall submit his reply to the provisional assessment order within two weeks thereafter, therefore a final order shall be passed by the competent authority within a further period of four weeks.

It is made clear that the present recovery, which is impugned in the writ petition, shall not be pressed into service and shall abide by the final decision to be taken by the authority as per direction contained herein above.

Order Date :- 30.9.2019

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(Ajit Kumar,J.) (Ramesh Sinha,J.)